

Smt. Suman Tyagi And Another v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 30 May 2022 · WRIT - C No. - 7884 of 2022 · **Writ disposed; para 6.5 objection; coercion stayed**

HEADNOTE

Writ against a demand-and-disconnection warning disposed of without any opinion on merits. Petitioners may file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks; if filed, it shall be decided after hearing within the next four weeks. Coercive action on the impugned demand is stayed for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Smt. Suman Tyagi and another challenged an order of 31 August 2021 by respondent no. 3 warning them to deposit the electricity bill, failing which the connection would be permanently disconnected and a notice issued under rule 5 of the Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Rules, 1958. They also sought bills from 1 May 2020 in accordance with law. The distribution licensee stated on instructions that an objection to the demand could be filed and decided within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to a disputed electricity demand

HOLDING

Without expressing any opinion on the merits, the writ is disposed of with liberty to the petitioners to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks, along with a certified copy of the order. If submitted in time, respondent no. 3 shall decide the objection in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ seeking certiorari against the 31 August 2021 demand-and-disconnection warning, and mandamus for bills from 1 May 2020, was disposed of without a merits finding, by liberty to object under para 6.5. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed electricity demand was left to an objection under para 6.5 before respondent no. 3, to be decided in accordance with law after hearing, with coercive action stayed in the meantime. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 31 AUGUST 2021 DEMAND, THE BILLS FROM 1 MAY 2020, AND THE THREATENED PERMANENT DISCONNECTION AND RULE 5 RECOVERY NOTICE

The Court expressed no opinion on merits and left the demand to a para 6.5 objection. ¶ 1